

The Assam Subordinate Agricultural Service Rules, 1994

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State of Assam - Act

The Assam Subordinate Agricultural Service Rules, 1994

ASSAM

India

The Assam Subordinate Agricultural Service Rules, 1994

Rule THE-ASSAM-SUBORDINATE-AGRICULTURAL-SERVICE-RULES-1994 of 1994

Published on 6 April 1995

Commenced on 6 April 1995

[This is the version of this document from 6 April 1995.]

[Note: The original publication document is not available and this content could not be verified.]

The Assam Subordinate Agricultural Service Rules, 1994

Published vide Notification No. AGA. 375/85/116, dated 6th April, 1995 in the Assam Gazette, Part 2A, dated 21.6.1995 pages 361-272

Last Updated 10th February, 2020

No. AGA. 375/85/116. - In exercise of the powers conferred by the proviso to Article 309 of the Constitution of India and in supersession of all other existing rules in this behalf except as respects things done or admitted to be done before such supersession the Governor of Assam is hereby pleased to make the following rules regulating the recruitment and the conditions of services of the persons appointed to the Assam Sub-ordinate Agricultural Service, namely :-

1.

Short title and commencement.

(1)

These rules may be called the Assam Subordinate Agricultural Service Rules, 1994.

(2)

They shall come into force on the date of its publication in the Official Gazette.

2.

Definitions.

- In these rules, unless there is anything repugnant in the subject or context:-

(a)

"Appointing Authority" means the Director of Agriculture, Assam;

(b)

"Commission" means the Assam Public Service Commission;

(c)

"Constitution" means the Constitution of India;

(d)

"Government" means the Government of India;

(e)

"Governor" means the Governor of Assam;

(f)

"Member" means the member of Assam Subordinate Agricultural Service;

(g)

"Committee" means the Selection Committee constituted under Rules 6 and 13;

(h)

"Select List" means the list as referred to in Rule 12;

(i)

"Service" means the Assam Subordinate Agricultural Service; and

(j)

"Year" means the Calendar Year.

3.

Class and Cadre.

(1)

The service shall consists of the following classes and cadres :-

(a)

Class. - It shall include the cadres of :-

1. Agricultural Inspector (LR)

2. Agricultural Inspector (TR)

3. Inspector (HQ)

4.

Agricultural Inspector (Training)

5.

Agricultural Inspector (Irrigation).

6.

Agricultural Inspector (Grow more food).

7.

Agricultural Inspector (Reclamation).

8.

Agricultural Marketing (Intelligence Inspector).

9.

Agricultural Inspector (Potato).

10.

Agricultural Inspector (Cotton).

11.

Agricultural Inspector (Fertilizer) (Promotion).

12.

Plant Protection Inspector.

13.

Fruit Inspector.

14.

Sugarcane Inspector.

15.

Compost Inspector.

16.

Farm Supervisor.

17.

Fruit Technological Asstt.

18.

Cartographic Asstt.

19.

Technical Asstt. (Agricultural Farming Corporation).

20.

Oil Seed Development Asstt.

21.

Production Asstt. (Fruit Preservation).

22.

Agricultural Marketing Inspector.

23.

Agricultural Inspectors (Input Supply and Management).

24.

Special Officer-cum-Secretary-cum-Manager (AFC).

25.

Research Assistant.

(b)

Class-II. - It shall include the cadres of Assistant Agricultural Inspector.

1. Jute Field Assistant.

2. Assistant Agricultural Inspector Jute.

3. Horticulture Field Assistant.

4. Assistant Agricultural Inspector.

5. Assistant Marketing Intelligence Inspector.

6. Assistant Agricultural Marketing Inspector.

7. Marketing Supervisor.

8. Supervisor (Seed Testing).

9. Supervisor (F.P.).

10. Field Assistant-cum-Supervisor.

11. Junior Scientific Assistant.

12. Laboratory Assistant.

13. Assistant Irrigation Inspector.

14. Assistant Farm Manager.

15. Field Assistant.

16. Field Assistant (Sugarcane).

17. Field Assistant for Farm.

18. Assistant Agricultural Inspectors (Input Supply and Management),

(c)

Class III. - It shall include the cadres of:-

1. Agricultural Demonstrator.
2. Addl. Agricultural Demonstrator.
3. Field Man.
4. Grading Demonstrator.
5. Fruit Demonstrator.
6. Grafter.
7. Sugarcane Demonstrator.
8. Irrigation Demonstrator.
9. Village Level Extension Worker (VLEW).
10. Village Level Extension Worker (Gram Sevak) (Transferred from P & CD Deptt.).

The posts equivalent to the posts in the cadre of the service and include in the respective cadres as on the date of commencement of these rules are mentioned in Schedule-I

4. Strength of Service.

- The strength of each cadre in the class of service shall be such as determined by the Governor from time to time. The strength of the cadre of the service on the date of commencement of these rules shall as shown in Schedule-I.

Provided that the Governor may hold in abeyance any post as and when considered necessary.

5. Method of Recruitment.

- The recruitment to the service shall be made in the manner prescribed hereinbelow :

(a)

By direct recruitment to Class-III cadre on the basis of selection made in accordance with Rule 6.

(b)

By promotion in accordance with Rules 11 and 12 to the Cadre of SAS-II from the Class-III cadre.

Explanation. - For the post of supervisor (F.P.) Junior Scientific Assistant and Laboratory Assistant borne SAS-II requiring science qualification, the Deptt. of Agriculture shall make necessary arrangement to train up the departmental officers of the SAS service to man these posts. In no case direct requirement to SAS-II should be resorted to.

In case suitable senior persons are not available in Class II cadre for recruitment to specialised post in Class II as mentioned above; even after Departmental arrangement for training or through other means, as suitable person from a relatively junior position may be allowed to officiate to such post till such time when his promotion to Class-II cadre becomes due on the basis of seniority.

(c)

By promotion in accordance with Rules 11 and 12 to the cadre Class-I from Class-II.

6. Direct Recruitment.

(1)

Subject to Rules 8, 9 and 10 direct recruitment of Class-III officers shall be made by the Director of Agriculture, Assam on the basis of recommendation of Selection Committee constituted under Rule 13.

(2)

The Selection Committee shall make the selection in accordance with the scheme of selection prescribed by the Director of Agriculture in consultation with the Government. The Selection Committee may hold test or interview as may be considered necessary from time to time.

7. Age-Qualification for Director Recruitment.

- A candidate for direct recruitment to the service shall be within the following age limits on the 1st January of the year of advertisement with relaxation in case of candidates belonging to special categories like Scheduled Castes, Scheduled Tribes and any other category as laid down by Government.

(1)

For Class-III Officers

Minimum 18 years

Maximum 36 years.

8. Academic Qualification.

- The academic qualifications of candidates for direct recruitment shall be as prescribed by the Government from time to time.

The qualification and experience prescribed as on the date of commencement of these rules are given in Schedule-II.

9. Physical Fitness.

- A candidate for direct recruitment shall be (i) of sound health, both mentally and physically and free from organic defect or bodily infirmity likely to interfere with the efficient performance of his duties, and (ii) require to undergo medical examination before appointment to his service.

10. Character.

- A candidate for direct requirement shall produce to the Selection Committee a certificate of his good character from (a) the principal Academic Officer of the institution he studied last (b) Two responsible persons who are well acquainted with (but not related to) the candidates.

11. Recruitment by promotion in Class-I and II.

(1)

All vacancies in Class-I and II cadre shall be filled up by promotion in the manner provided herein after:-

(a)

From Village Level Extension Worker and equivalent posts in Class-III to Assistant Agricultural Inspector and equivalent post in Class-II.

(b)

From Assistant Agricultural Inspector and equivalent posts in Class-II to Agricultural Inspector and equivalent posts in Class-I.

(2)

The post in Class-II cadre shall be filled up by promotion from the officers belonging to Class-III cadre in the manner prescribed herein below :-

(a)

He has passed Higher Secondary School Leaving Certificate Examination Science stream or an equivalent examination.

(b)

He has rendered service in Class-III cadre for a minimum of 8 years out of which at least 5 years shall be in the extension works as on the first January of the year of promotion. Provided that the above condition of 5 years experience in extension works shall be relaxed for members already in service.

(c)

He has successfully undergone the training and passed the departmental examination as may be prescribed from time to time.

The post in Class-I Cadre shall be filled up by promotion from the Officers belonging to Class-II Cadre in the manner prescribed here in below:

(a)

He has passed Higher Secondary School Leaving Certificate examination in Science stream or an equivalent examination.

(b)

He has rendered service for a minimum period of 5 years in the cadre of Class-II, or He has rendered continuous service for a period of 13 years in the cadre of Class-III.

(c)

He has successfully undergone the training and passed the departmental examination as may be prescribed from time to time:-

Provided that the above mentioned qualification shall be relaxed for matriculate and non-matriculate members already in service :

Provided further that for matriculate members this relaxation shall be applicable for higher promotion from Class-I to Assam Agriculture Service-I onwards but for non-matriculate members, this relaxation shall apply for promotion to posts in Class-II and Class-I only.

12. General Procedure of Promotion.

(1)

Before the end of each year the Director of Agriculture, Assam shall make an assessment of the likely number of vacancies in Class-II and Class-I cadre to be filled up by promotion in the next year in each cadre.

(2)

The appointing authority shall then furnish to the Committee the following documents and information with regard to as

many officers in order of seniority cum-merit as four times the number as assessed under sub-rule (1):-

(i)

Information about the number of vacancies.

(ii)

List of Officers order of seniority eligible for promotion (separate lists) for promotion to different cadres shall be furnished indicating the cadre to which the case of promotion is to be considered.

(iii)

Character rolls and personal files of the officers listed.

(iv)

Details about reservation in case of promotion of the service and about carry forward of such reservation as provided under the Assam Scheduled Castes and Scheduled Tribes (Reservation of vacancies Services and posts) Act, 1978.

(3)

The Committee shall select candidates on the basis of seniority cum-merit.

(4)

The Committee after examination of the documents and information furnished by the Appointing Authority shall recommend to the Appointing Authority a list of Officers about double the probable number of vacancies in order of preference found suitable for promotion.

(5)

The Appointing Authority shall consider the list prepared by the Committee alongwith character rolls and personal files of the employees and approve the list accordingly.

13. Selection Committee.

- The Selection Committee as referred to in rules 6,11 and 12 shall consist of the following.

Chairman : Director of Agriculture.

Member : Addl. Director of Agriculture (Extn.)

a representative of the Government of Assam Agriculture Deptt. not below the rank of Deputy Secretary.

Secretary. - Joint Director of Agriculture (Admn.) Addl. Director of Agriculture (Admn.).

14. Disqualification.

(1)

No person shall be eligible for appointment; Promotion or confirmation to in the service:-

(a)

unless he is a citizen of India; and

(b)

he has more than one wife living or in case of female candidate who has more than one husband living :

Provided that the Governor may, if he is satisfied that there are special ground for doing so, exempt any person from the operation of this clause.

(2)

no person who attempts to enlist support for his candidature directly or indirectly by any recommendation either written or oral or by any other means shall be appointed to the service.

15. Reservation.

- In all cases of appointment by direct recruitment as well as by promotion there shall be reservation in favour of candidates belonging to Schedule Caste, Schedule Tribes, and any other category as laid down by the Government from time to time.

16. Appointment.

- Subject to the provisions of rule 15 appointment under rule 6 shall be made by the order of preference determined in the list referred to under the said rule.

17. Joining Time.

- A person shall join within 15 days from the date of receipt of the order of appointment or promotion, failing which the appointment shall be cancelled unless the Appointing Authority extends the period, which shall not in all exceed three months.

18. Training.

- A member of the service may be required to undergo such training or examination as Government may prescribed

under general or special order.

19. Discharge or Reversion.

- A temporary or officiating member shall be liable to be discharged or reverted to the lower cadre of the service or to his original service, as the case may be, if.

(a)

he fails to make sufficient use of the opportunities given during any training as may be prescribed by Government from time to time or fails to render satisfactory service during his tenure of service in the cadre.

(b)

it is found on a subsequent verification that he was initially not qualified for the appointment or that he had furnished any incorrect information in regard to his appointment.

20. Seniority.

- The seniority of a member in a cadre, appointed by direct recruitment or by promotion shall be determined according to the order of merit in the respective list finally approved by the Appointing Authority under rules 6 and 12 if he joins the appointment within 15 days from the date of receipt of the order or within the extended period.

(2)

If a member fails to join the appointment within the initial 15 days of receipt of the order or within the extended period, but joins later his seniority shall be determined in accordance with the date of joining.

21. Probation and Confirmation.

- Subject to availability of a permanent vacancy in the respective cadre, a member shall be confirmed according to seniority and satisfactory service in his own cadre or in the cadre in which he was directly appointed.

22. Gradation List.

- the gradation list shall be prepared and published every year and it shall consist of the names of all members of the service cadre-wise in order of seniority and such other particulars as date of birth, date of appointment/promotion educational qualification and examination/training passed etc.

23. Pay.

- All appointment in the service shall be made in the time scale of pay as may be prescribed by the Government from time to time. The scale of pay of the posts in the cadre of the service on the date of commencement of these rules are as shown in the schedule-1.

24. Mode of Employment.

- Member of the service shall be employed in such manner as the Appointing Authority may decide.

(2)

A member of the service shall be liable to be posted any where within the State of Assam or outside Assam or to any other Department of the Government a body corporate in the affairs of which the Government may be substantially interested or any autonomous district council, if so required in the interest of public service and in such case the member shall not have any objection against such posting or transfer.

25. Other Conditions of Service.

- Except as provided in these rules, all matter relating to pay and allowance, leave pension discipline and other conditions of service shall be regulated by the general rules and or order of the Government for the time being in force.

26.

Relaxation.

- Where the Appointing Authority is satisfied that the operation of any of these rules causes undue hardship in any particular case, it may, dispense with or relax the requirement of that rule to such extent and subject to such conditions as it may consider necessary for dealing with the case in a just and equitable manner:-

Provided that the case of any person shall not be dealt with in any manner less favourable to him than that provided in these rules.

27.

Interpretation.

- If any question arises as to interpretation of these rules the decision of the Government there on shall be final.

I

Rule 3(1)(a), (b), (c) 4 and 23

List of equivalent posts, strength of each cadre and time scale of pay as on 1st January 1990.

Sl. No.

Name of cadre and categories of posts,

Time scale of pay

No. of posts

(1)

(2)

(3)

(4)

CLASS I

1.

Agricultural Inspector (LR)

Rs.

1635-50-2035-60-2275-EB-60/2395-80-2875-100-3575-125-3950/-

25

2.

Agri. Inspector (TR).

do

25

3.

Inspector (H.Q.)

do

19

4.

Agri. Inspector (Training)

do

9

5.

Agril. Inspector (Irrigation)

do

25

6.

Agril. Inspector (Grow more food).

do

25

7.

Agri Inspector (Reclamation).

do

2

8.

Agril. Marketing Intelligence Inspector.

do

6

9.

Agril. Inspector (Potato)

do

2

10.

Agril. Inspector (Cotton).

do

1

11.

Agril. Inspector (Fertiliser Promotion).

do

2

12.

Plant Protection Inspector

do

12

13.

Fruit Inspector.

do

12

14.

Sugarcane Inspector.

do

5

15.

Compost Inspector

do

2

16.

Farm Supervisor.

do

1

17.

Fruit Technological Asstt.

do

1

18.

Cartographic Asstt.

do

1

19.

Technical Asstt. (Agril. Farming Corporation).

do

25

20.

Oil Seed Dev. Asstt.

do

1

21.

Production Asstt. (Fruit Preservation).

do

1

22.

Agril. Marketing Inspector.

do

4

23.

Agril. Inspector (Input Supply and Management).

do

60

24.	Special Officer-cum-Secretary-cum-Manager (AFC).
do	
12	
25.	Research Asstt.
do	
22	
Grand Total	
300	
CLASS II	
1.	Jute Field Assistant
Rs.	
1185-20-1225-30-1435-40-1550-EB-40-1635-50-2035-60-2395/-	
67	
2.	Assistant Agricultural Inspector (Jute)
do	
22	
3.	Horticultural Field Assistant
do	
16	
4.	Assistant Agricultural Inspector
do	
32	
5.	Assistant Marketing Intelligence Inspector
do	
21	
6.	Assistant Agricultural Marketing Inspector
do	
3	
7.	Marketing Supervisor
do	
23	
8.	Supervisor (Seed Testing)
do	
5	
9.	Supervisor (F.F.)
do	
5	
10.	Field Assistant Cum-Supervisor
do	

5

11.

Junior Scientific Assistant

do

20

12.

Laboratory Assistant

do

2

13.

Assistant Irrigation Inspector

do

22

14.

Assistant Farm Manager

do

2

15.

Field Assistant

do

10

16.

Field Assistant (Sugarcane)

do

7

17.

Field Assistant for Farms

do

75

18.

Assistant Agril, Inspectors (Input Supply and Management)

do

300

Total

637

CLASS-III

1.

Agricultural Demonstrator

Rs.

1125-20-1225-30-1435-EB-40-1635-50-2035-60-2215/-.

862

2.

Addl. Agril. Demonstrator

do

77

3.

Field Man

do

45

4.

Grading Demonstrator

do

2

5.

Fruit Demonstrator

do

27

6.

Grafter

do

33

7.

Sugarcane Demonstrator

do

12

8.

Irrigation Demonstrator

do

104

9.

Village Level Extension Worker (VLEW)

do

133

10.

Village Level Extension Worker (Gram Sevak) (Transferred from
D & C.D. Deptt.)

do

968

Total

2853

II

Rule-8

Qualification Training and Experience prescribed for direct Recruitment

Class - III Cadre

1.

Village Level Extension Worker

A pass in the Higher Secondary School Leaving Certificate

Examination in science Stream or its equivalent of any recognised

Board/University with satisfactory completion of pre-service

training prescribed for village Level Extension Worker in any

recognised Institution of the Government.

2.

Agricultural Demonstrator.

3.

Addl. Agricultural Demonstrator.

4.

Field Man.

5.

Grading Demonstrator.

6.

Fruit Demonstrator.

7.

Grafter.

8.

Sugarcane Demonstrator.

9.

Irrigation Demonstrator.

Note : All appointments in CLASS-III shall initially be made to the post of Village Level Extension Worker who may thereafter be posted as Village Level Extension worker or its equivalent post as enumerated in this Schedule.

Related AI tags, queries and research notes

Translation